

## Abdul Kalaam v. Purvanchal Vidhyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 October 2010 · WRIT - C No. 54317 of 2009 · **Writ dismissed; excess-billing protest must first be made under clause 7.10.**

### HEADNOTE

A cotton-factory consumer alleged overpayment of Rs.2,16,300 over six years and challenged a 11.9.2009 demand. The Court held that para 7.10 of the U.P. Electricity Supply Code, 2005 requires an objection to an alleged excess bill within 30 days, for correction. No calculation basis was given and the licensee had not admitted excess. The writ was dismissed; future billing complaints must first be protested under the Code.

### FACTUAL SUMMARY

Abdul Kalaam, proprietor of a cotton factory, sought to quash recovery under a demand notice dated 11 September 2009 of Purvanchal Vidhyut Vitran Nigam Ltd. He alleged that since 30 October 2003 he had paid bills regularly, with dues carried forward and adjusted later, and that after six years he had overpaid Rs.2,16,300. Annexed bills showed only part-payments; the licensee had not admitted any excess. An interim order of 24 October 2009 stayed recovery on deposit of Rs.30,000 and directed restoration of supply.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::7.10

excess billing — 30-day objection before writ

#### HOLDING

Para 7.10 of the U.P. Electricity Supply Code, 2005 provides that a consumer complaining of excess billing may raise an objection within 30 days of the alleged excess bill, which is then required to be corrected. A writ claiming refund of alleged overpayment over six years, without a stated calculation basis or departmental admission of excess, was dismissed. Any future billing complaint must first be protested under the Code before approaching the Court. ¶ 5

**FLAG** Court cited para 7.10 for the 30-day excess-bill objection (substance of cl. 7.10(i)).